



CHAPTER xlv.

An Act to confer further powers on the undertakers of the Aire and Calder Navigation in relation to their undertaking to extend the time for the completion of certain authorised works and for other purposes. A.D. 1924.

[14th July 1924.]

WHEREAS by the Act 10 and 11 William III. cap. xix. and various other Acts (local and personal) powers for making and keeping navigable the rivers of Aire and Calder in the county of York and for constructing and maintaining certain canals and other works in that county including docks at the port of Goole and other powers have been conferred on the Undertakers of the Aire and Calder Navigation (hereinafter referred to as "the Undertakers") :

And whereas under and by virtue of the Ouse (Lower) Improvement Act 1884 the Undertakers are conservators of the lower portion of the river Ouse in the said county of York :

And whereas the Undertakers were authorised to acquire for the purposes of the last mentioned Act the staith on the said river Ouse known as Murham or Murham Lane Staith and the portion of the Hook Bank known as the Constables Banking upon which the said staith abutted situate in the manor and township of Hook in the parish of Snaith (now the parish and urban district of Goole) in the west riding of the said county

A.D. 1924. of York the soil of which said staith and banking was vested in the freeholders and copyholders within the manor and township of Hook :

And whereas by an agreement dated the eighteenth day of December one thousand eight hundred and eighty-eight and made between the then trustees of the Undertakers of the one part and certain persons therein named being a committee of the said freeholders and copyholders and other parties entitled to commonable rights or rights in the nature thereof duly appointed to treat with the Undertakers for the compensation to be paid by the Undertakers for the rights of the said freeholders and copyholders and other parties aforesaid in respect of the said staith and banking of the other part it was (inter alia) agreed that the Undertakers should apply to Parliament for an Act authorising them to construct in substitution for the said then existing staith a landing place on the river Ouse with a road of access thereto from the Hook Road and that from and after the completion of the said new landing place the said freeholders and copyholders and other parties aforesaid should have the right of using the new landing place with the road of access thereto for the purposes therein mentioned and that from and after the completion of the said new landing place as aforesaid all claims of the said freeholders and copyholders and all other parties aforesaid to compensation in respect to the acquisition by the Undertakers of the said then existing staith and banking and all their rights and property in to or upon the same should cease and be extinguished and the said staith and banking should thereupon belong absolutely to the Undertakers for the purpose of their works or otherwise freed from all such claims rights and property :

And whereas pursuant to the said agreement the Undertakers duly made application to Parliament for power to construct the new landing place and road of access referred to therein and by the Aire and Calder Navigation Act 1889 the Undertakers were authorised to construct a landing place on the bank and foreshore of the said river Ouse at Goole in the said parish of Snaith (now the parish and urban district of Goole) together with a road of access thereto (both of which are hereinafter referred to as and intended to be included in the expression "Hook Landing") and by section 35

of the said Act of 1889 the said recited agreement of the
eighteenth day of December one thousand eight hundred
and eighty-eight was confirmed and made binding upon
the Undertakers and their trustees and the said free-
holders and copyholders and other parties interested in
the said Murham or Murham Lane Staith and Constables
Banking referred to in such agreement And it was by the
said section further provided that upon the completion
of Hook Landing the said then existing staith and banking
should be vested in the trustees of the Undertakers in
trust for the Undertakers in accordance with the said
agreement and that Hook Landing should constitute the
new landing place and road of access referred to in the
said agreement and might be used accordingly by the
parties mentioned in such agreement :

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—

And whereas the Undertakers acquired the land
for and constructed Hook Landing in accordance with
the said recited agreement and the said Act of 1889 :

And whereas for some years past very little use
has been made of Hook Landing by the said freeholders
and copyholders and the Undertakers being desirous
of removing Hook Landing in connection with the
development of their undertaking and the improvement
of the river Ouse have with that object entered into
the agreement with the said freeholders and copyholders
set forth in the schedule to this Act :

And whereas it is expedient that the said agreement
should be confirmed and that the Undertakers should
be authorised to abandon and discontinue the use of
and to remove Hook Landing upon the terms contained
in the said agreement :

And whereas by section 61 of the Act 9 Geo. IV.
cap. xcvi. intituled "An Act to enable the Under-
" takers of the navigation of the rivers Aire and Calder
" in the west riding of the county of York to make
" certain cuts and canals and to improve the said
" navigation " the Undertakers were (inter alia)
empowered to take and receive the rates mentioned
in the said section in respect of every ship or vessel
entering into the docks or basins of the Undertakers at
the said port of Goole :

And whereas by section 32 of the Wakefield
Pontefract and Goole Railway and Port of Goole Act

A.D. 1924. — 1846 the Undertakers were authorised to take and receive in respect of animals goods and minerals landed or discharged upon or loaded or delivered from any quays wharfs and other works of the Undertakers at the said port rates of wharfage not exceeding the rates specified in Schedule (A) to the said Act and referred to in the said section :

And whereas the rates so authorised to be taken by the Undertakers as aforesaid have from time to time been increased or altered by orders made by the Minister of Transport under the Harbours Docks and Piers (Temporary Increase of Charges) Acts 1920 to 1922 :

And whereas the Goole Docks (Temporary Increase of Charges) Order 1924 was made under the said Acts on the eleventh day of February one thousand nine hundred and twenty-four which order will expire on the fifteenth day of February one thousand nine hundred and twenty-five :

And whereas in order to enable the Undertakers thereafter to levy and make adequate rates in respect of their dock undertaking it is expedient that the operation of the said order should be continued subject to the provisions in this Act contained for revision of the rates authorised by the said order :

And whereas it is expedient to enlarge the powers of the Undertakers of leasing their property at the said port :

And whereas it is expedient to extend for a further period the time limited for the completion of the works mentioned in this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the *Aire and Calder Navigation Act 1924.*

Incorporation of Act. 2. Part II. (relating to extension of time) of the *Railways Clauses Act 1863* so far as applicable for the

purposes of this Act is hereby incorporated with and forms part of this Act. A.D. 1924.

3. In this Act unless there be something in the subject or context repugnant to such construction— Interpretation.

The expression "the Undertakers" means the Undertakers of the Aire and Calder Navigation;

The expression "the trustees" means the trustees of the Aire and Calder Navigation;

The expression "the Act of 1884" means the Ouse (Lower) Improvement Act 1884;

The expression "the Act of 1889" means the Aire and Calder Navigation Act 1889;

The expression "Hook Landing" means the landing place on the bank and foreshore of the river Ouse at Goole including the road of access thereto the construction of which was authorised by section 4 (14) of the Act of 1889.

In Part II. of the Railways Clauses Act 1863 incorporated with this Act—

The expressions "the company" and "the railway and works" mean respectively for the purposes of this Act the Undertakers and the several works the time for the completion of which is hereby extended.

4.—(1) The agreement set forth in the schedule to this Act is (without prejudice to the provisions of the section of this Act of which the marginal note is "Crown rights") hereby confirmed and made binding upon the Undertakers and the trustees and upon the freeholders and copyholders within the manor and township of Hook and all other parties (if any) interested in or entitled to use Hook Landing and upon payment by the Undertakers of the sum of five thousand pounds in manner provided by the said agreement all claim right interest and property of the said freeholders and copyholders and all such other parties as aforesaid in to or over Hook Landing under or by virtue of the Act of 1889 and the agreement set forth in the First Schedule to that Act or otherwise shall cease and be extinguished and the Undertakers may subject as regards the said road of access to the provisions of the first-mentioned agreement abandon discontinue the use of and remove

Abandon-
ment of
Hook
Landing.

A.D. 1924. Hook Landing and may use the site thereof for any of the purposes of their undertaking.

(2) Upon payment by the Undertakers of the said sum of five thousand pounds in manner aforesaid section 35 of the Act of 1889 and the said agreement set forth in the First Schedule to that Act shall be and the same are hereby repealed and cancelled.

(3) The sum of three thousand five hundred pounds by clause 3 of the said agreement agreed to be paid to the Goole Urban District Council shall be applied by the said council in the provision of the public conveniences and band-stand mentioned in the said clause and the said council may and shall thereafter maintain the same and may pay the expenses incurred by them in so doing out of the general district rate of their district.

Rates at
port of
Goole.

5. The Goole Docks (Temporary Increase of Charges) Order 1924 relating to the Goole dock undertaking of the Undertakers shall notwithstanding anything contained in the Harbours Docks and Piers (Temporary Increase of Charges) Acts 1920 to 1922 but subject to the provisions of this Act continue in operation until the first day of October one thousand nine hundred and twenty-nine.

Under-
takers to
provide
books of
charges &c.
at Goole
Docks.

6. The Undertakers shall until the first day of October one thousand nine hundred and twenty-nine keep at their principal office at Goole books specifying all charges and conditions attaching thereto in operation at the Goole dock undertaking on the thirty-first day of December one thousand nine hundred and thirteen and such books shall be open to inspection by any person during all reasonable hours without payment and the Undertakers shall deposit on or before the thirty-first day of December one thousand nine hundred and twenty-four a certified copy of all such books at the office of the Ministry of Transport.

Revision of
rates.

7.—(1) If at any time it is represented in writing to the Minister of Transport (hereinafter in this section referred to as “the Minister”)—

(a) by any chamber of commerce or shipping or representative body of traders or any person who is in the opinion of the Minister a proper person for the purpose; or

(b) by the Undertakers;

A.D. 1924.

that under the circumstances then existing all or any of the rates authorised in pursuance of this Act should be revised the Minister may if he thinks fit at any time after the fifteenth day of February one thousand nine hundred and twenty-five make an order revising all or any of such rates as aforesaid and may fix the date as from which such order shall take effect and thenceforth such order shall be observed until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section. Provided that before making an order under this section the Minister shall cause an inquiry to be held with reference thereto in pursuance of the Board of Trade Arbitrations &c. Act 1874 as applied by this section.

(2) No application may be made under this section for a general revision of the rates for the time being authorised under this Act within twelve months after the date of an order made by the Minister for a general revision thereof and no application may be made for a revision of any particular rate within twelve months after the date of an order made by the Minister for a general revision of the said rates or of any previous application for a revision of the particular rate in question.

(3) The provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply for the purposes of this section (a) as if the Minister were referred to therein in lieu of the Board of Trade (b) as if the person or persons duly authorised to hold any inquiry thereunder were the rates advisory committee constituted under the Ministry of Transport Act 1919 or any sub-committee thereof to which the said advisory committee may under section 2 of the Harbours Docks and Piers (Temporary Increase of Charges) Act 1920 have delegated their powers or in the event of the said advisory committee ceasing to exist some persons with similar qualifications to be appointed for the purpose by an order of the Minister under section 2 of the said Act of 1874 and (c) as if in section 4 of the said Act of 1874 the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

(4) An application made to the Minister under this section shall be accompanied by such information and

A.D. 1924. particulars as the Minister may consider relevant certified in such manner as he may require and the Minister and the body or persons holding an inquiry for the purposes of this section may call for such documents and accounts as they may consider relevant and may hear such witnesses as they shall think fit and shall have power to take evidence on oath and for that purpose may administer oaths.

Annual
accounts to
be furnished
to Ministry
of
Transport.

8. The Undertakers shall in every year within three months after the close of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of their undertaking.

Additional
powers of
leasing at
port of
Goole.

9.—(1) Without prejudice to the powers conferred on the Undertakers by section 28 (Undertakers may contract for special accommodation to companies &c. using the railway) of the Wakefield Pontefract and Goole Railway and Port of Goole Act 1846 or other powers now vested in the Undertakers of leasing or otherwise dealing with their property and notwithstanding anything contained to the contrary in the Harbours Docks and Piers Clauses Act 1847 as incorporated with and applied to the docks of the Undertakers at Goole by the Act of 1884 the Undertakers or the trustees may grant or lease to any company body or person any lands now or hereafter belonging to the Undertakers and forming part of the dock estate of the Undertakers at the port of Goole and any warehouses sheds or other buildings wharves quays yards lines of railway cranes slipways jetties machines or other apparatus conveniences or appliances whatsoever constructed or provided by the Undertakers or any other company or body or any person on any such lands for such period at such rent or for such other consideration and subject to such terms and conditions as the Undertakers or the trustees may think fit.

(2) Section 29 (Undertakers may lease warehouses wharves &c. provided by them) of the Act of 1884 is hereby repealed but without prejudice to anything done under the said section before the passing of this Act.

Extension
of time for
works on
river Ouse

10. The period now limited by an order of the Minister of Transport for the completion of the works authorised by the Act of 1884 is hereby further extended

for ten years from the expiration of that period that is under Act
until the twenty-eighth day of July one thousand nine of 1884.
hundred and thirty-four.

11. The period now limited by an order of the Minister of Transport for the completion of the training wall or embankment authorised by section 5 of the Aire and Calder Navigation Act 1914 is hereby further extended for ten years from the expiration of that period that is until the eighth day of July one thousand nine hundred and thirty-four. Extension of time for works on river Ouse under Act of 1914.

12. The period now limited by an order of the Minister of Transport for the completion of— Extension of time for widenings of

(a) The widenings of the Knottingley and Goole Canal authorised by section 23 of the Aire and Calder Navigation Act 1899 ; Knottingley and Goole Canal.

(b) The extension or enlargement (Work No. 9) authorised by section 5 of the Aire and Calder Navigation Act 1908 of widening (E) of the said canal authorised by the said Aire and Calder Navigation Act 1899 ; and

(c) The widening (G) (Work No. 10) of the said canal also authorised by section 5 of the said Aire and Calder Navigation Act 1908 ;

is hereby further extended for seven years from the expiration of that period that is until the thirteenth day of July one thousand nine hundred and thirty-one.

13. The Undertakers may apply to the purposes of this Act any funds or capital belonging to or authorised to be raised or borrowed by them which are not required for the purposes for which the same were authorised to be raised or directed to be applied. Application of funds of Undertakers.

14. Money expended by the Undertakers in connection with Hook Landing under this Act or the agreement scheduled to this Act or such proportion thereof as the Undertakers think reasonable may be carried by them to the debit of the Lower Ouse Improvement Capital Account and the provisions of the Act of 1884 which relate to money disbursed on capital account for the purposes of or under that Act shall apply to expenditure carried to the debit of that account under the authority of this Act. Expenditure in connection with Hook Landing may be debited to Lower Ouse Improvement Capital Account.

A.D. 1924.

Crown
rights.

15. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Undertakers to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Works
below high-
water mark
not to be
constructed
without
consent of
Board of
Trade.

16. The Undertakers shall not under the powers of this Act construct on in under or over the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Undertakers shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consent or approval. If any such work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Undertakers and the amount of such costs and charges shall be a debt due from the Undertakers to the Crown and shall be recoverable as a Crown debt or summarily.

Costs of
Act.

17. The costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Undertakers and such proportion thereof as the Undertakers think reasonable may be carried to the debit of the Lower Ouse Improvement Capital Account.

The SCHEDULE referred to in the foregoing Act. A.D. 1924.

AN AGREEMENT made the thirty-first day of December one thousand nine hundred and twenty-three BETWEEN THE TRUSTEES of the AIRE and CALDER NAVIGATION (hereinafter called "the Navigation Trustees") of the one part and SYDNEY GEORGE BEVAN of Aire Street Goole in the west riding of the county of York ironmonger ALBERT WARD DRURY of North Street Goole aforesaid solicitor LAMPLEY HOLMES of Garth House Hook near Goole in the said riding JOHN FRANCIS CHAMBERS of Westfield Avenue Goole aforesaid architect JOHN HERBERT SMITH of the Post Office Hook aforesaid sub-postmaster FRANK LEGGOTT SHACKLETON of Hook aforesaid contractor and JOHN STENNITT JOHNSON of Hook House Hook aforesaid farmer for and on behalf of the freeholders and copyholders within the manor and township of Hook (hereinafter called "the Committee") of the other part supplemental to articles of agreement dated the eighteenth day of December one thousand eight hundred and eighty-eight made between Andrew Montagu William Aldam Walter Thomas William Spencer Stanhope and Francis Darwin the then trustees of the Undertakers of the Navigation of the rivers of Aire and Calder in the county of York (hereinafter referred to as "the Undertakers") of the one or first part and the said Lampley Holmes and William Everatt Hind William Jackson and James Armitage of the other or second part which articles of agreement are set out in the First Schedule to the Aire and Calder Navigation Act 1889.

Stamp.

Fifty
pounds.

WHEREAS by section 35 of the said Act of 1889 the said agreement of the eighteenth day of December one thousand eight

A.D. 1924. — hundred and eighty-eight was thereby confirmed and made binding upon the said Undertakers and their trustees and the freeholders and copyholders within the manor and township of Hook and other parties entitled to commonable rights or rights in the nature thereof (hereinafter referred to as the "said freeholders and copyholders") in respect of the staith and banking known as Murham or Murham Lane Staith (now abandoned) and Constables Banking referred to in such agreement and upon the completion of the landing place and road of access by that Act authorised the said staith and banking were by virtue of that Act vested in the trustees of the Undertakers in trust for the Undertakers in accordance with the said agreement and the landing place and road of access by that Act authorised were constituted the new landing place and road of access referred to in the said agreement and were to be used accordingly by the parties mentioned in such agreement :

And whereas the Undertakers acquired the land for and duly completed the landing place and road of access authorised by the said Act of 1889 (hereinafter referred to as "the Hook Landing") and have since maintained the same for the use of the said freeholders and copyholders :

And whereas the Undertakers are desirous in connection with the development of their dock undertaking at Goole and for the improvement of the river Ouse to remove the Hook Landing and have approached the said freeholders and copyholders with a view to the same being abandoned :

And whereas for some years past the said freeholders and copyholders have made very little use of the Hook Landing and it would be of greater advantage to such freeholders and copyholders that such landing should be abandoned and that they should receive money compensation in respect of such abandonment to be applied for other purposes for their benefit :

And whereas a meeting was convened and held on the fifth day of January one thousand nine hundred and twenty-two of the said freeholders and copyholders and at such meeting the parties hereto of the second part (the said John Stennitt Johnson having been subsequently added as a representative of the Hook Parish Council) were appointed a committee to treat with the Undertakers for the compensation to be paid for the abandonment of the Hook Landing and the rights of the said freeholders and copyholders in respect of such landing :

And whereas the freeholders and copyholders claiming rights in respect of the Hook Landing are very numerous and comprise a large portion of the inhabitants of Goole and Hook

and the difficulty of apportioning a money compensation among them would involve great legal and other expense and delay : A.D. 1924.
—

And whereas the Committee have agreed with the Undertakers that the Hook Landing shall be permanently abandoned and that in lieu and full discharge of the rights of the said copyholders and freeholders to such landing the sum of five thousand pounds shall be paid to the Committee as compensation :

And whereas a portion of the ancient manor and township of Hook aforesaid has been incorporated with and now forms part of the urban district of Goole and it has been agreed that of the said sum of five thousand pounds three thousand five hundred pounds shall be allocated and applied for the benefit of the said freeholders and copyholders in such portion of the said manor and township of Hook as is now comprised in and forms part of the urban district of Goole and that the sum of one thousand five hundred pounds shall be allocated and applied for the benefit of the said freeholders and copyholders in the remaining portion of the said manor and township of Hook :

And whereas it has been agreed that the said sum of three thousand five hundred pounds so allocated as aforesaid to the said freeholders and copyholders in such portion of the said manor and township of Hook as is incorporated with and now forms part of the urban district of Goole shall be appropriated and applied for the purposes hereinafter mentioned and that the said sum of one thousand five hundred pounds so allocated as aforesaid to the said freeholders and copyholders in the remaining portion of the said manor and township of Hook shall be appropriated and applied for the purposes hereinafter mentioned :

Now these presents witness and it is hereby agreed by and between the Navigation Trustees and the Committee in manner following that is to say :—

1. The Undertakers shall in the next session of Parliament apply to Parliament for and use their best endeavour to obtain an Act authorising the abandonment of the Hook Landing.

2. Upon the passing of the Act authorising the abandonment of the Hook Landing the Undertakers shall pay to the Committee the sum of five thousand pounds and the receipt of any four members of the Committee for the money shall be a full and sufficient discharge to the Undertakers and the Navigation Trustees.

3. Of the said sum of five thousand pounds three thousand five hundred pounds shall be paid to the Goole Urban District Council to be applied in the provision of public conveniences at an estimated cost of three thousand pounds and of a band-stand

A.D. 1924. in the riverside gardens Hook Road Goole aforesaid at an estimated cost of five hundred pounds for the benefit of the said freeholders and copyholders in such portion of the said manor and township of Hook as is now incorporated with and forms part of the urban district of Goole and as to the balance of one thousand five hundred pounds to be applied for the benefit of the said freeholders and copyholders of the remaining portion of the said manor and township of Hook seven hundred and fifty pounds part thereof shall be paid to the Reverend George Alfred Budd Chamberlain John Stennitt Johnson Ernest Gunnill and Charles Tong the trustees of the proposed Hook war memorial fund for the purpose of the provision of a war memorial hall in accordance with the terms of an indenture dated the fourteenth day of September one thousand nine hundred and twenty-two and made between Frederick James Osbaldeston Montagu of the first part George Eustace Cook Yarborough George Charlton Anne and Henry Stanley Bruce Greenfield of the second part and the said Reverend George Alfred Budd Chamberlain John Stennitt Johnson Ernest Gunnill and Charles Tong of the third part and of a supplementary trust deed therein provided for or to such others the trustees for the time being of the Hook war memorial fund in accordance with the trusts of the said indenture and seven hundred and fifty pounds shall be paid to the parish council of Hook to be applied as to five hundred pounds in the purchase of land for a public recreation ground and as to two hundred and fifty pounds towards the provision of burial accommodation for the parish of Hook but the Undertakers and the Navigation Trustees shall not be concerned with the application of the said moneys or any part thereof nor be under any obligation to see that they are applied in accordance with the provisions of these presents.

4. There shall be reserved to His Majesty's subjects rights of footway seven feet and six inches in width over and along the site of the road of access to Hook Landing or over and along a substituted site of the same width between the point marked "F" on the plan drawn on an indenture of conveyance dated the twelfth day of November one thousand nine hundred and thirteen and made between the Navigation Trustees of the one part and the urban district council of Goole of the other part and Hook Road and the site of the said road of access or such substituted site as aforesaid shall hereafter remain and be dedicated and used by His Majesty's subjects as a highway on foot only.

5. After the passing of the Act authorising the abandonment of the Hook Landing all claims of the said freeholders and copyholders and all other parties now entitled to or to use the

said landing or who would have been entitled to or to use such landing if the same had been continued and all their rights and property in to or upon the same shall cease and be extinguished and the said landing shall belong absolutely to the Navigation Trustees to be used for any purpose in connection with the undertaking of the Undertakers freed from all such claims rights and property. A.D. 1924.

6. This agreement shall be scheduled to the Bill to be applied for in the next session of Parliament by the Undertakers as aforesaid and the confirmation by Parliament thereof sought so as to make the same binding upon the said freeholders and copyholders and all other parties interested in the Hook Landing or if the Undertakers so desire the arrangement herein contained may instead thereof be embodied in and sanctioned by clauses in such Bill and such Bill may also contain such clauses and provisions in relation to the appropriation and use of the Hook Landing freed as aforesaid and such other clauses and provisions as the Undertakers may deem necessary or expedient provided the same are not inconsistent with the arrangement contained in this agreement.

7. The Committee shall support the application for and assist the Undertakers in obtaining from Parliament the above-mentioned powers and provisions and the confirmation of this agreement or sanction to the arrangement herein contained but they shall not be required to incur any legal or other expenses in connection with such support and assistance.

8. If the Undertakers do not in the next or the next following session of Parliament obtain the necessary powers to abandon the Hook Landing in accordance with this agreement and obtain such confirmation of this agreement or sanction to the arrangement herein contained as aforesaid then the rights of the Committee and of the said freeholders and copyholders and all other parties interested as aforesaid shall revive as if this agreement had not been entered into and this agreement (except as to this clause) shall cease to be in force.

9. This agreement is subject to such alteration as Parliament may think fit to make therein but if Parliament should make any material alteration therein and such alteration shall not be accepted by both parties hereto it shall be competent to either party thereto to withdraw from the same.

In witness whereof the Navigation Trustees have hereunto caused their common seal to be affixed and the said parties hereto of the other part have hereunto set their hands and seals the day and year first above written.

A.D. 1924.

The common seal of the Trustees of the
Aire and Calder Navigation was
hereunto affixed in the presence of

Seal of the
Trustees of the
Aire and Calder
Navigation.

W. W. WARDE ALDAM

Trustee.

LISTER HORN

Secretary.

Signed sealed and delivered by the
said Sydney George Bevan
Albert Ward Drury Lampley
Holmes and John Herbert Smith
in the presence of

SYDNEY G. BEVAN.

(L.S.)

A. W. DRURY.

(L.S.)

J. W. PULLON

Solicitor and clerk to the
Goole Urban District
Council.

LAMPLEY HOLMES.

(L.S.)

JOHN F. CHAMBERS.

(L.S.)

Signed sealed and delivered by the
said Frank Leggott Shackleton
in the presence of

J. HERBERT SMITH.

(L.S.)

A. HOODLASS

43 Newport Street
Goole
Clerk.

FRANK L. SHACKLETON. (L.S.)

J. S. JOHNSON.

(L.S.)

Signed sealed and delivered by the
said John Francis Chambers and
John Stennitt Johnson in the
presence of

A. LAZENBY

37 Jackson Street
Goole
Clerk.

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